

Salient Features and Characteristics of the Constitution of India

3.1 Introduction

- India's Constitution is special. It is the largest written democratic constitution in the world.
- It mixes federal (power divided between central and states) and unitary (strong central control) features. It balances flexibility and strict rules.
- It started on **26th January 1950** and has guided India's progress since then.
- Some important points about the Constitution are discussed below.

3.2 Constitution

- India's Constitution is a **fully written document** that includes all laws of the country.
- It was **discussed in detail** and **approved** by the **Constituent Assembly**.
- It took **2 years, 11 months, and 18 days** to make the Constitution.
- The Constitution has **448 Articles**, divided into **25 parts**.
- It covers **both the central and state governments**.
- It is much bigger than:
 - The **US Constitution**, which has only **7 Articles**
 - The **French Constitution**, which has **89 Articles**

3.3 Self-made and Enacted Constitution

- India's Constitution was made by **the people of India** through their **elected representatives** in the **Constituent Assembly** formed in **December 1946**.
- The **first meeting** of the Assembly was on **9th December 1946**.
- The **Objectives Resolution** was passed on **22nd January 1947**.
- After that, they started writing the Constitution and **finally approved it on 26th November 1949**.
- It became **fully active** from **26th January 1950**.
- We celebrate this day as **Republic Day** because India made and accepted its own Constitution.

3.4 The Preamble of the Constitution

- The **Preamble** is the **introduction** to the Constitution. It explains the goals and purpose of the Constitution.
- It says India is a:
 - **Sovereign** (independent),
 - **Socialist** (fair to all),
 - **Secular** (no official religion),
 - **Democratic** (people choose their leaders),
 - **Republic** (no king or queen)
 - And a **Welfare State** (cares for its people).

Key Terms from the Preamble of the Constitution

1. **Sovereign**
India is an independent country. It is not controlled by any other nation and has the full authority to make its own laws and decisions.
2. **Socialist**
The government aims to reduce the gap between the rich and the poor and works to provide equal opportunities for everyone in society.
3. **Secular**
India does not have an official state religion. All religions are treated equally, and every citizen has the freedom to follow their own religion.
4. **Democratic**
In a democracy like India, people have the right to choose their leaders through free and fair elections. The government is formed by the representatives elected by the people.
5. **Republic**
The head of the state in India is not a monarch but an elected representative. The President of India is chosen by an electoral process, making India a republic.

3.5 India is a Democratic Socialist State

- From the beginning, India followed the idea of **democratic socialism**, but the word '**Socialism**' was officially added to the **Preamble in 1976**.
- Today, **socialism** is considered an important part of the Indian Constitution.
- India aims to give **social, economic, and political justice** to all its people.
- This means stopping all unfair treatment and making sure **income, resources, and wealth** are shared fairly.
- All of this should happen in a **peaceful, lawful, and democratic** way.

3.6 India is a Secular State

- **India does not give special status to any religion.**
- This makes India **different from countries like Pakistan**, which have an official religion.
- In India, **all religions are treated equally**, and people have the **freedom to follow any religion**.
- The Constitution gives the **Right to Religious Freedom** to every citizen.

3.7 India is a Democratic State

- The Constitution of India gives us a **democratic system**, where the **people have the power**.
- **Everyone has equal political rights**.
- People use these rights to **vote and take part in politics**. They choose their leaders.
- **Elections are held regularly** in a **free and fair** way.
- The **government works for the people** and is **answerable to them**.
- People can **change the government** by voting in elections.
- If a government loses people's trust, it cannot stay in power.
- **India is the largest democracy** in the world.

3.8 India is a Republic

- The **Preamble** says that **India is a Republic**.
- That means **India has no king or queen** as head of the country.
- India has a **President**, who is elected for **5 years**.
- The **President is not chosen directly** by the people but is **elected indirectly** every 5 years.

3.9 India is a Union of States

- Article 1 of the Constitution says: **"India, that is Bharat, is a Union of States."**
- This means:
 - States in India **do not have the right to leave the Union**.
 - Today, India has **28 States** and **7 Union Territories**.

3.10 A Mixture of Federalism and Unitarianism

- India is described as a **Union of States** and has a **federal system** with a **unitary spirit**.

- Scholars call it a “**Quasi-Federation**” (not a complete federation) or a “**Unitary-biased federation.**”
- Like a federation, India has:
 - A **single written Constitution.**
 - A **strong and independent judiciary** to settle disputes between states.
 - **Separate governments** for the central and states.
- But India also shows **unitary features**:
 - The **central government is very strong.**
 - There are provisions like **single citizenship, emergency powers, a common election system.**

3.11 A Mixture of Rigidity and Flexibility

- The Indian Constitution is **both strict and flexible.**
- Some parts are **difficult to change**, while others are **easy to change.**
- In some cases, **Parliament** can change the Constitution using a **simple method.**
- **Article 368** explains how changes (amendments) can be made:
 - **Most changes** require a **special process**:
 - The change must be approved by **two-thirds of members** present in both Houses of Parliament.
 - **Some changes** also need approval from **more than half of the states** after being passed in Parliament.
- So, the Constitution of India is **partly rigid and partly flexible.**

3.12 Fundamental Rights

- Part III (Articles 12 to 35) of the Constitution gives **important rights** to all Indian citizens.
- These are known as the **Indian Bill of Rights.**
- Originally, there were 7 rights, but now **only 6 remain** after the **Right to Property** was removed in 1979.

The Six Fundamental Rights Are:

☒ Right to Equality (Articles 14–18)

- Everyone is **equal before the law.**
 - No discrimination is allowed.
 - Everyone should get **equal opportunities.**
 - **Untouchability** and **titles** (like royal titles) are abolished.
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☒ Right to Freedom (Articles 19–22)

It includes 6 basic freedoms:

1. Freedom of speech and expression
 2. Freedom to move anywhere in India
 3. Freedom to live anywhere in India
 4. Freedom to choose any job or work
 5. Freedom to form groups or unions
 6. Freedom to hold meetings peacefully (without weapons)
- It protects people's **personal freedom** and ensures **fair treatment** by law.
 - The **Right to Education** for children aged **6–14 years** is now part of this (Article 21A).
 - **Article 22** protects people from being arrested unfairly.
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☒ Right against Exploitation (Articles 23 & 24)

- Stops **human trafficking**, **child labor**, and **forced labor** (begging or working in dangerous places).
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☒ Right to Freedom of Religion (Articles 25–28)

- Every person has the right to **choose and follow any religion**.
 - No one can be forced to follow any religion.
 - The government **cannot collect tax** for promoting any religion.
 - Religious minorities can run their own religious schools.
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☒ Cultural and Educational Rights (Articles 29–30)

- Minorities can **protect their language, culture**, and **set up their own schools**.
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☒ Right to Constitutional Remedies (Article 32)

- This right is called the **“heart and soul”** of the Constitution.
- It lets people go to **courts** to protect their fundamental rights.
- The **Supreme Court** and **High Courts** can help enforce these rights.

Fundamental Duties (Article 51A)

Every Indian citizen should:

1. **Respect the Constitution**, national symbols like the Flag and Anthem.
2. Follow the ideals of freedom fighters.
3. Respect the country's unity and freedom.
4. Defend the country and serve when needed.
5. Promote **harmony** among all communities.
6. Preserve India's **culture and heritage**.
7. Protect **nature and animals**.
8. Grow **scientific thinking** and the spirit of progress.
9. Protect public property and avoid violence.
10. Work for progress in all fields.
11. Send children aged **6 to 14 years** to school (added by the **86th Amendment** in 2002).

Emergency Provisions

- These are special powers for times of crisis.
They are explained in Articles **352 to 360**.

1. Article 352 – National Emergency

- Declared when there is **war, external aggression, or armed rebellion**.
- Can be applied to the **entire country** or a **part** of it.
- **Fundamental Rights (except Articles 20 and 21)** can be suspended.
- Must be approved by **both Houses of Parliament** within **1 month**.
- Once approved, it remains for **6 months** and can be extended.

Historical Examples:

- 1962: During war with China
- 1971: During war with Pakistan
- 1975: Internal Emergency declared by Indira Gandhi

2. Article 356 – State Emergency (President's Rule)

- Declared when a **state government fails** to run as per the Constitution.
- The **President takes control** of the state's administration.
- State legislature is **suspended or dissolved**.
- Must be approved by Parliament within **2 months**.
- Can last for **6 months at a time**, up to a maximum of **3 years**.
- The **Governor runs the state** on behalf of the President.
- The **Parliament makes laws** for the state

Punjab (1987–1992):

- Due to **rising terrorism and political instability**, President's Rule was imposed for **5 years**, the longest in Indian history.

3. Article 360 – Financial Emergency

- Declared when there is a threat to the **financial stability** of the country.
- Central Government can **control state finances**.
- Salaries of government officials (including judges) can be **reduced**.
- Must be approved by **Parliament within 2 months**.
- No time limit – can continue until revoked.
- **No**, Financial Emergency has **never been declared** in India till now.

These powers help the **central government** take quick action to **protect the country**.

3.13 A Sources of the Constitution

Country/Source	What India Took from It
US Constitution	- Fundamental Rights- Independence of the judiciary- Judicial review- Process to remove (impeach) the President- Removal of judges- Post of Vice-President
Irish Constitution	- Directive Principles of State Policy- Election method of the President- Nomination of members to Rajya Sabha
Australian Constitution	- Concurrent List (shared powers)- Freedom of trade and movement- Joint sitting of both Houses of Parliament
Weimar Constitution (Germany)	- Suspension of Fundamental Rights during an emergency
Soviet Constitution (USSR)	- Fundamental Duties- Justice (social, economic, and political) in the Preamble
French Constitution	- Ideas of Liberty, Equality, and Fraternity in the Preamble
South African Constitution	- Procedure to amend (change) the Constitution- Method to elect Rajya Sabha members